

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 43

ACCÈS ET STATIONNEMENT
DES NAVIRES DE GUERRE POLONAIS
DANS LE PORT DE DANTZIG

AVIS CONSULTATIF DU 11 DÉCEMBRE 1931

XXIII^{me} SESSION

1931

XXIIIrd SESSION

ADVISORY OPINION OF DECEMBER 11th, 1931

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 43

ACCESS TO, OR ANCHORAGE IN,
THE PORT OF DANZIG,
OF POLISH WAR VESSELS

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PERMANENT COURT OF INTERNATIONAL JUSTICE

TWENTY-THIRD SESSION.

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 No. 44.

ACCESS TO, OR ANCHORAGE IN,
 THE PORT OF DANZIG,
 OF POLISH WAR VESSELS

Relations between Poland and the Free City of Danzig : free and secure access to the sea for Poland through the port of Danzig ; protection of Danzig by the League of Nations (defence of the Free City).—Treaty of Versailles, Articles 102-104.—Danzig-Polish Convention of November 9th, 1920, Articles 20, 26, 28.—Resolutions of the Council of the League of Nations of November 17th, 1920, and June 22nd, 1921.

ADVISORY OPINION.

Before : MM. ADATCI, *President*, GUERRERO, *Vice-President* ;
 Baron ROLIN-JAEQUEMYS, Count ROSTWOROWSKI,
 MM. FROMAGEOT, ALTAMIRA, ANZILOTTI, URRUTIA, Sir
 CECIL HURST, MM. SCHÜCKING, NEGULESCO, Jhr. VAN
 EYSINGA, MM. WANG, *Judges* ; BRUNS, *Judge ad hoc*.

THE COURT, composed as above, gives the following opinion :

On September 19th, 1931, the Council of the League of Nations adopted the following Resolution :

“The Council

Requests the Permanent Court of International Justice to give an advisory opinion under Article 14 of the Covenant on the following question :

‘Do the Treaty of Peace of Versailles, Part III, Section XI, the Danzig-Polish Treaty concluded at Paris on November 9th, 1920, and the relevant decisions of the Council of the League of Nations and of the High Commissioner, confer upon Poland rights or attributions as regards the access to, or anchorage in, the port and waterways of Danzig of Polish war vessels? If so, what are these rights or attributions?’

Requests the Permanent Court of International Justice to be so good as to give this opinion in time to enable the Council to take a decision on the matter at its session of January 1932 ;

Invites the Governments of Poland and Danzig to hold themselves at the disposal of the Court for the purpose of furnishing any relevant documents or explanations.

The Secretary-General is authorized to submit this request to the Court, to give any assistance necessary for the examination of the question, and, if necessary, to take steps to be represented before the Court.”

In pursuance of this Resolution, the Secretary-General, on September 25th, 1931, transmitted to the Court a request for an advisory opinion in the following terms :

“The Secretary-General of the League of Nations, in pursuance of the Council Resolution of September 19th, 1931, and in virtue of the authorization given by the Council,

has the honour to submit to the Permanent Court of International Justice an application requesting the Court, in accordance with Article 14 of the Covenant, to give an advisory opinion to the Council on the question which is referred to the Court by the Resolution of September 19th, 1931.

The Secretary-General will be prepared to furnish any assistance which the Court may require in the examination of this matter, and will, if necessary, arrange to be represented before the Court.”

The request was registered in the records of the Registry of the Court on September 28th, 1931.

Under cover of a letter dated October 1st, 1931, the Secretary-General subsequently sent to the Registrar a copy of the minutes of the meeting of the Council of the League of Nations on September 19th, 1931, when the Resolution above mentioned was discussed and adopted. The Secretary-General also sent to the Court a complete set of copies of the appendices to the annexes to these minutes and also certain relevant documents¹.

In conformity with Article 73, paragraph 1, sub-paragraph 1, of the Rules of Court, the request was communicated to Members of the League of Nations and to States entitled to appear before the Court. Furthermore, the Registrar, by means of a special and direct communication, informed the Governments of the Polish Republic and of the Free City of Danzig, which were regarded by the Court as likely, in accordance with Article 73, paragraph 1, sub-paragraph 2, of the Rules, to be able to furnish information on the question submitted to the Court for an advisory opinion, that the Court was prepared to receive from them written statements and, if they so desired, to hear oral arguments made on their behalf at a public hearing to be held for the purpose; the representatives of the interested Governments had already been consulted as to the length of the time-limits within which these Governments would be ready to file any written statements they might desire to submit.

In these circumstances, and having due regard to the suggestions made by the above-mentioned representatives and likewise to the Council's desire to receive the Court's opinion in sufficient time before the former's session in January 1932, the President of the Court, by an Order made on October 3rd, 1931, fixed October 20th, 1931, as the date by which a written statement was to be filed by each of the two Governments, and November 5th, 1931, as the date by which they were to file a second statement. By the first of these dates, memorials had been filed on behalf of the Danzig and Polish Governments, and, by the second, the same Governments

¹ See list in Annex.

had duly filed counter-memorials. The relevant documents were appended to the two memorials of the Free City¹.

Lastly, on October 5th, 1931, the Registrar addressed to all States parties to the Treaty of Versailles of June 28th, 1919, a communication drawing their attention to the rights conferred upon them, in connection with the question before the Court, by Article 73, paragraph 1, sub-paragraph 3, of the Rules of Court.

After having, by a special decision under Article 28, paragraph 2, of the Rules of Court, given the case concerning access to and anchorage in the port of Danzig for Polish war vessels priority over another case which preceded it in the list and was also ready for hearing, the Court, in the course of the public sittings held on November 9th, 10th, 11th, 12th, 13th, and 14th, 1931, heard the oral arguments in the first-named case presented by Sir John Fischer Williams, Agent, on behalf of the Danzig Government, and by MM. Moderów, Agent, and Ch. de Visscher, Counsel, on behalf of the Polish Government.

In addition to the statements and observations of the interested Governments and the documents transmitted by the Secretary-General of the League of Nations² as mentioned above, the Court has had before it a series of documents handed in in the course of the hearings by the representatives of the two Governments¹.

The Court held that the question submitted to it for an advisory opinion related to an existing dispute between the Free City of Danzig and Poland within the meaning of Article 71, paragraph 2, of the Rules of Court. As one only of these States, namely, Poland, had on the Bench a judge of its nationality, the Senate of the Free City of Danzig availed itself of its right, under Article 71 of the Rules of Court, to choose a judge *ad hoc* to sit in the case.

The submission of the case being in all respects regular, it is in these circumstances that the Court is now called upon to give its opinion.

¹ See list in Annex.

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The question upon which the Court is asked to advise is closely connected with the problem of affording Poland free and secure access to the sea—the reason which led to Danzig being severed from Germany by the Treaty of Versailles and established as a Free City—and with the action which was taken after the coming into force of the Treaty of Versailles by the Conference of Ambassadors and by the Council of the League of Nations in connection with the defence of Danzig. It will therefore be well to set out in chronological sequence the facts and documents which must be borne in mind.

Section XI of Part III of the Treaty of Versailles provides for the cession of the territory which now constitutes the Free City of Danzig by Germany to the Principal Allied and Associated Powers, who undertook to establish that territory as a Free City under the protection of the League. A Constitution for the Free City was to be drawn up by the duly appointed representatives of the Free City in agreement with the High Commissioner appointed by the League, and this Constitution was to be placed under the guarantee of the League. The Principal Allied and Associated Powers also undertook to negotiate a treaty between Poland and Danzig which was to come into force simultaneously with the establishment of the Free City and which was, as the terms of Article 104 clearly show, to ensure to Poland the enjoyment of a series of rights for the purpose of safeguarding her position at Danzig. The negotiation of the treaty referred to in Article 104 was entrusted to the Conference of Ambassadors in Paris. The work was initiated by the adoption of a resolution by that body on May 7th, 1920, of which the first two paragraphs provided that this treaty should be concluded as soon as possible, but that Poland could not be authorized to establish a military or naval base at Danzig. The negotiations were brought to a conclusion, and the treaty was signed at Paris on November 9th, 1920. The treaty is, for shortness' sake, described as the Convention of Paris. On that same day, the Act establishing the Free City, which had been signed by the representatives of the Principal Allied and

Associated Powers on October 27th, 1920, was accepted by the representatives of the Free City.

The Conference of Ambassadors, while engaged in conducting the negotiations which led to the conclusion of the Convention of Paris, received from the Polish delegation two successive drafts containing a special section devoted to "military and naval affairs", and in this section figured a clause giving Poland the right to use the port of Danzig and its equipment for the anchorage, repairing and victualling of her war vessels. This provision was not inserted in the Convention.

The text of the Convention as settled by the Conference of Ambassadors was communicated to the delegations of the two Parties concerned and to the Secretary-General of the League of Nations in letters dated October 20th, 1920, and it may be well to recall some of the statements which were made by the Conference of Ambassadors in those letters.

In the communication addressed to the Polish delegation, it was said that the Powers considered that, as then worded, the Convention reconciled the interests of the two Parties and assured to Poland, as well as to the Free City, the enjoyment of their rights under the Treaty of Versailles. The letter went on to say that, in submitting its observations on the draft convention previously communicated to it, the Polish delegation had insisted on the convention making provision for the military defence of Danzig. As regards this point, the Conference did not consider that any provision on the question could be inserted in the convention under Article 104 of the Treaty of Versailles, but it had decided to draw the attention of the Council of the League of Nations to the point.

The letter to the Secretary-General of the League contained the following passages:

"As is shown by the reply dated June 16th, 1919, of the Allied and Associated Powers to the observations of the German delegation on the terms of peace, the intention of the Powers in constituting Danzig and the territory specified in Article 100 of the Treaty as a Free City was to establish between Poland and the Free City the very closest relations; their object was indeed to provide Poland with free access to the sea.

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Owing to the close relations thus established between the Free City and Poland, and also in view of the clearly expressed intention of the Powers who signed the Treaty of Versailles to give Poland free access to the sea, the Polish Government would thus seem to be entitled to receive from the League of Nations the mandate of eventually ensuring the defence of the Free City."

The question of the protection of the Free City came before the Council during its session in November 1920, as Article 102 of the Treaty of Versailles had placed the Free City under the protection of the League. The result of this Article is that the League, and therefore the Council of the League acting in its name, has the right and the duty of ensuring the defence of the Free City of Danzig. Viscount Ishii presented a report, dated November 17th, dealing not only with the question of the defence of Danzig, but also with that of placing Danzig under the protection of the League and of giving the guarantee of the League to the Constitution of the Free City. In the course of the discussion on this report, the Polish representative asked the Council to avert all danger for Poland by conferring upon her a permanent mandate for the defence of the Free City in the general interests of peace. The Council, however, did not go further than to adopt a resolution saying that "the Polish Government appears particularly fitted to be, if the circumstances require it, entrusted by the League of Nations with the duty of ensuring the defence of the Free City". At the same time the Council instructed the Permanent Advisory Commission on Military, Naval and Air Questions "to consider the means which will ensure the most effective defence of Danzig....".

In its report presented on December 1st, 1920, the Permanent Advisory Commission submitted a series of detailed suggestions for this purpose and added a final clause that, "without waiting for the result of the examination of the defensive organization of the Free City, the Polish Government should be given sufficient harbourage in the port of Danzig to ensure the sheltering and repairing of those small naval units which were given it by the Allies for the policing of its waters".

The report of the Permanent Commission was considered by the Council, on the basis of a report by Viscount Ishii,

at its session in December 1920 and evoked strong criticisms. It was decided to communicate the two reports to the High Commissioner at Danzig whom the Council was about to appoint, and to direct him to study the question on the spot and to address a report to the Council on the subject.

The conclusions of the High Commissioner were embodied in a report dated January 25th, 1921. After a detailed examination of the various aspects of the problem, the High Commissioner said that, if the League decided in favour of retaining its guarantee for the Free City of Danzig and would allow no one nation to be given a mandate for its defence, he, as High Commissioner, would be able to ensure to Poland the full use of the harbour.

On March 5th, 1921, the Polish delegation to the League addressed to the President of the Council a letter invoking Article 28 of the Convention of Paris—according to which Poland had the right to import and export through Danzig goods of any kind whatever, including war material—and setting out four demands for the purpose of avoiding all possible accidents by placing such war material under effective supervision from the moment of its arrival in the port. The third of these demands related to Poland obtaining a “point d’attache” in the port of Danzig for the purpose of assuring the anchorage, victualling and upkeep of the vessels of the Polish maritime police to which, under the decision of the Allies, certain naval units had been appropriated.

In its session of June 1921, the Council had once more to concern itself with the questions of the defence of the Free City and of Poland’s right of free access to the sea at Danzig, as it then had before it both the High Commissioner’s report of January 25th, 1921, and the Polish demands of March 5th of the same year.

As regards the defence of Danzig, the Council adopted on June 22nd, 1921, a report by Viscount Ishii to the effect that there was no reason to modify the conclusions which it reached on November 17th, 1920, and also a Resolution. The first five paragraphs of this Resolution relate to the defence of Danzig by land. The last two are as follows:

"(6) The Council does not consider it necessary to decide at the present moment under what conditions the defence of Danzig by sea should be secured.

(7) The High Commissioner should, however, be asked to examine the means of providing in the port of Danzig, without establishing there a naval base, for a 'port d'attache' for Polish warships."

The connection between the words "point d'attache" in the Polish letter of March 5th, 1921, and "port d'attache" in paragraph 7 of the above Resolution and the right of access and anchorage referred to in the question upon which the Court is now asked to advise will be referred to later.

The presence of the words "without establishing there a naval base" in paragraph 7 of the Resolution is due to the Resolution adopted by the Conference of Ambassadors on May 7th, 1920, which has been referred to above. The Constitution of Danzig in its final form, as approved by the Council of the League, contains a provision (Art. 5) under which, without the previous consent of the League of Nations in each individual case, the Free City must not be used as a military and naval base.

The Polish demands set out in the letter of March 5th were dealt with by the Council of the League on the basis of a report submitted by Viscount Ishii on June 22nd, 1921, with the title of "The protection of Poland's right of free access to the sea through Danzig." As regards the third Polish demand, this report proposed that paragraph 7 of the Resolution which had just been adopted, to the effect that the High Commissioner should be asked to consider what steps should be taken to establish in the port of Danzig a "port d'attache" for Polish warships, should apply also to the vessels of the Polish maritime police. The Council must have agreed to this proposal, although no resolution to that effect was adopted. The question of the port d'attache was dealt with in a report by the High Commissioner dated September 10th, 1921. Its terms show that General Haking was considerably embarrassed to know how to distinguish a "port d'attache" from a naval base, and how to reconcile the rights of Danzig as a Free City with the claims submitted to him by the Polish

authorities. The High Commissioner concluded his report by saying that he regarded the question as a matter for naval experts rather than for him, but that he considered that Poland must be given every facility for mooring her warships in the port of Danzig under conditions which would preclude the establishment of a naval base and the violation of the engagements of the League of Nations and of the Government of Danzig.

The Council adopted the suggestion contained in General Haking's report that the matter was one for the naval experts of the League and referred his report to the Permanent Advisory Commission, whose Naval Sub-Commission submitted a report to the Council on September 24th, 1921.

This document is of some interest because it shows the importance which the naval advisers to the Council attached to the practical aspects of the situation. They were unanimous in thinking that facilities for sheltering, taking in stores and effecting repairs should be granted to the Polish war vessels; but they were not unanimous as to how such facilities could best be ensured, particularly as to whether or not Poland should be given any establishment on shore.

Attached to the report is an Opinion, embodying a series of regulations which the Naval Sub-Commission suggested should be adopted. Their idea would seem to have been to effect a friendly settlement of a question which they must have regarded as urgent because, until such time as the port of Gdynia, then under construction, was completed, the units of the Polish fleet had no place other than Danzig in which they could safely pass the winter. For this reason, the proposals made by the Naval Sub-Commission were in their suggestion only to last until Gdynia was ready.

This report was not taken into consideration by the Council until January 12th, 1922, and, in the meantime, with the help of the High Commissioner, acting on the instructions of the President of the Council, a provisional arrangement between Poland and the Free City had been come to at

Danzig on October 8th, 1921. Under this arrangement, Poland was to continue to use the port of Danzig for her warships until the question of a "port d'attache" was decided by the Council of the League. She was to inform the President of the Senate of Danzig of the number of ships she wished to keep in the port, and the President would raise no objection to these ships remaining in the port. The arrangement was not to commit either side as regards any future agreement between them or any future decision by the Council.

On December 7th, 1921, the High Commissioner submitted a further report to the Council. Its terms show that he was hoping that the question might be disposed of by a friendly agreement between the two Parties on a somewhat wider basis than the Provisional Arrangement of October 8th, 1921, but in case no such agreement should be reached, he submitted a scheme which in his opinion would meet the requirements of the situation. Under it, sufficient berths were to be allotted to the Polish warships by the Harbour Board where these vessels could lie undisturbed and for any period they pleased, subject to the conditions which he indicated.

This report came before the Council on January 12th, 1922, but the Council then thought it unnecessary to take any further action. A resolution was adopted postponing consideration of the question of a "port d'attache" for Polish war vessels in Danzig to a later session. Until the question was considered by the Council, the so-called Provisional Arrangement was to remain in force.

The system laid down in the Provisional Arrangement of October 8th, 1921, still governs, subject to some additions, the use of the port of Danzig by Polish war vessels, as the result of a Regulation issued by the High Commissioner on September 19th, 1931, providing that Poland would continue to use the port of Danzig for her war vessels as during these last years, until the question of their access to and anchorage in the port of Danzig was settled definitively by the Council of the League of Nations. This Regulation was issued by the High Commissioner in pursuance of a resolution adopted by

the Council with the participation of the two Governments concerned.

Both in 1925 and in 1927, the Senate of the Free City raised the question of the continuance in operation of the Provisional Arrangement of October 8th, 1921, as in their opinion the progress of the works at Gdynia rendered it possible for the Polish warships to find in that port the shelter and facilities of which they were in need.

In 1925 it was in connection with another question that the Senate of the Free City brought the matter before the Council, but it is worth while to mention it because of what is said in the last paragraph of the report adopted by the Council on December 9th, 1925, which reads as follows: "La question du port d'attache, soulevée par la note dantzikoise reste ouverte."

In 1927 the Danzig authorities, in a note to the Polish Representative at Danzig (May 20th), again expressed the opinion that the time had come to put an end to the Provisional Arrangement and invited the Polish Government to agree that the special privileges accorded to Polish warships at Danzig should come to an end on July 1st, 1927. Poland, however, was unwilling to come to any such agreement. The Danzig Senate then applied to the Council of the League of Nations and asked that the question of a "port d'attache" should be examined anew, and that the Council should give a definite decision (August 2nd, 1927). It was subsequently agreed, however, to keep the arrangements of 1921 in force. Their operation has been prolonged from time to time, the last of these prolongations being effected by the special regulation issued by the High Commissioner on September 19th, 1931, which is referred to above, until the matter was definitely settled by the Council, the issue of this special regulation being agreed to at the time when the Council decided to ask the Court for an advisory opinion on the question which is now before it.

* * *

The question upon which the Court is asked to advise is whether the provisions of Section XI of Part III of the Treaty of Versailles or of the Convention of Paris of November 9th, 1920, or the relevant decisions of the Council of the League or of the High Commissioner, confer on Poland rights or attributions as regards the access to or anchorage in the port and waterways of Danzig of Polish war vessels; and, if so, what are those rights and attributions?

The sense in which the word "attributions" is used in the question is not altogether clear. The Counsel for both the Governments concerned have assumed that it refers to powers entrusted or delegated by a superior authority. No question in connection with the meaning to be given to the word has arisen in the course of the case. For this reason the Court, without wishing to express any opinion on the meaning of the word "attributions" in general, is prepared to admit, for the purposes of the present case, the interpretation placed on the word by the representatives of the Governments concerned.

The claims of the Polish Government in this case have not been defined in very precise terms. At the close of his main oral argument, Counsel for the Polish Government stated his conclusions as follows: On the first part of the question, he invited the Court to say that it follows from the principles which are the basis of the international status of Danzig and from the decision of the Council of the League on June 22nd, 1921, that Poland has acquired for her warships, under the denomination of a "port d'attache", rights of access to and anchorage in Danzig; and on the second part of the question, to say that these rights of access and anchorage and the privileges resulting from them have not been worked out or settled.

The claim so stated is not very clear, but the general tenour of the documents and arguments which have been submitted to the Court shows that Poland is claiming that her warships

are entitled to go into the port of Danzig and to remain there as of right, without obtaining the consent of the authorities of the Free City, and that while in the port these war vessels are at liberty to ship such stores and execute such repairs as they may need.

The words "port d'attache" reappear in the Polish conclusions though an understanding had been reached at Danzig in 1927 that the use of the words "port d'attache" in connection with the claim should be discontinued, and that the rights claimed should be described as those of "access to and anchorage in the port of Danzig". The repetition of the words "port d'attache" in the Polish conclusion serves, however, to indicate that the question now discussed is the same as that which occupied the attention of the authorities of the League of Nations at Geneva when the words "port d'attache" were habitually used to indicate the rights which Poland was claiming. It is clear that in these early discussions at Geneva and at Danzig the words "port d'attache" were never used in their technical meaning either in the sense in which they are used in conventions relating to fishing vessels or merchant ships, such as the North Sea Fisheries Convention, 1882, or the Brussels Convention on Collisions of 1910, or in the more special sense in which they are used in the French Naval Service in connection with French warships. It follows, however, that if the words "port d'attache" are used only in the sense of rights of access and anchorage, the limits of the rights claimed are left vague. Neither access nor anchorage are terms of art, and no indication has been given on behalf of the Polish Government as to the extent to which the exercise of the rights claimed is to be subject to the control of the local authorities at Danzig. It is merely stated that the details of the rights accorded to Poland have not yet been worked out.

No question arises in this case as to the rights of warships in general to enter a foreign commercial harbour. What Poland is claiming is a right which is peculiar to herself at Danzig, a right which results from the special position which she occupies in relation to the Free City, a right which she

claims to derive from the principles underlying the various treaty stipulations in force and which would give her warships a special position different from that enjoyed by the warships of foreign Powers. The form of the question upon which the Court is asked to advise does not necessitate any consideration by it of what may be the existing rules of international law relating to the admission of warships to foreign commercial ports.

The fact that Poland claims special rights and privileges for her war vessels in the port of Danzig, renders it necessary to find some juridical basis for the claim. The port of Danzig is not Polish territory, and therefore the rights claimed by Poland would be exercised in derogation of the rights of the Free City. Such rights must therefore be established on a clear basis.

* * *

The question submitted to the Court relates to the effect of the Treaty of Versailles, the Convention of Paris, or the relevant decisions of the Council of the League of Nations and the High Commissioner at Danzig.

Section XI of Part III of the Treaty of Versailles makes no mention of Polish war vessels in connection with Danzig. It contains no stipulations specifically conferring any rights upon them. That fact alone, however, is not sufficient to dispose of the question. It is necessary to examine these provisions in order to see whether their natural interpretation would cover such rights as are now claimed by Poland, even though they make no specific mention of war vessels.

The only article in the section which directly affects Poland is Article 104. In this Article the Principal Allied and Associated Powers charge themselves with the duty of negotiating a treaty between Poland and Danzig for the purpose of ensuring to Poland the rights enumerated in the various paragraphs of that Article. All these paragraphs bear some relation to the free and secure access to the sea which had been promised to Poland though nothing to that effect is said in

the Article. The most important paragraph in the Article in connection with this case is No. 2, which gives as one of the purposes of the treaty to be negotiated that of "ensuring to Poland without any restriction the free use and service of all waterways, docks, basins, wharves and other works within the territory of the Free City necessary for Polish imports and exports".

The natural interpretation of these words is that Poland is only to enjoy the unfettered use of the port and its equipment for commercial purposes, and this is what is stated in the Convention of Paris, Article 26 of which provides that "it shall be the duty of the Harbour Board to assure to Poland the free use and service without any restriction, and in so far as may be necessary for Polish imports and exports, of the port and the means of communication referred to in Article 20". This provision cannot be held to confer on Poland a right of access and anchorage for war vessels.

This conclusion indeed is in accordance with the view taken by the Counsel for the Polish Government in his oral argument before the Court on November 11th (afternoon): "*Le Gouvernement polonais ne soutient pas du tout que les stipulations de l'article 104 du Traité de Versailles forment la base, le fondement de sa revendication d'un port d'attache.... Nous ne cherchons donc pas dans l'article 104 la base de notre revendication.*"

The Polish contention is that it is not the terms of the Treaty of Versailles which confer the right of access and anchorage upon her war vessels, but the principles underlying the establishment of the Free City in accordance with Section XI of Part III, and it is upon that ground and not on the specific terms of the articles in the Treaty that she is entitled to rely on the Treaty of Versailles.

If the Court rightly appreciates the Polish argument, it is that the known antecedents of the Treaty of Versailles, i.e. the promise that Poland is to enjoy free and secure access to the sea, entail an interpretation of the treaty texts relating to the establishment of the Free City which will give effect to the Polish claims. Three principles are said to be

inherent in the establishment of Danzig as a Free City, and it is these three principles which are the basis of the Polish claim: the necessity for ensuring free access to the sea for Poland, the intimate relations which were to exist between Danzig and Poland, and the necessity of providing for the defence of the Free City. The second, i.e. the intimate relations between Danzig and Poland, has always been treated as closely connected with that of ensuring free and secure access to the sea for Poland through Danzig, and it is therefore unnecessary to deal with it separately. The Resolution adopted by the Council of the League on June 22nd, 1921, of which mention has been made above and to which more detailed reference will be made below, under which the Council recognized that the Polish Government was specially fitted to be entrusted with the duty of ensuring, if circumstances required it, the defence of Danzig and asked the High Commissioner "to examine the means of making provision in the port of Danzig, without establishing a naval base, for a port d'attache for Polish warships", is said to indicate the Council's acceptance and recognition of these principles. It is maintained by Poland that the combined effect of these principles is such that they confer upon Poland the right of access to and anchorage in the port of Danzig for Polish warships.

The Court is unable to accept this reasoning. The promise to Poland at the time of the peace settlement after the war of 1914-1918 of a free and secure access to the sea is a matter of history of which the Court is prepared to take notice, but no materials and no reasons have been submitted to it for assuming that the contents of Section XI of Part III of the Treaty of Versailles, as carried into effect by the Convention concluded in pursuance of Article 104 of that Treaty, do not constitute a complete fulfilment of the promise. The Court is not prepared to adopt the view that the text of the Treaty of Versailles can be enlarged by reading into it stipulations which are said to result from the proclaimed intentions of the authors of the Treaty, but for which no provision is made in the text itself.

Furthermore, the Court is not satisfied that the principles which are said to be inherent in the establishment of Danzig as a Free City afford any basis for a claim of right on the

part of Poland for access to and anchorage for war vessels in the port of Danzig. The Treaty of Versailles imposed no responsibility upon Poland for ensuring the free access to the sea which it was the intention of that Treaty that she should enjoy, nor does it impose upon her any responsibility for the defence of Danzig. It is upon the League of Nations that the responsibility is imposed in both cases. The Court is not prepared to accept the view that these principles, relied upon on the part of Poland, are sufficient to support the claim which she is now advancing.

The important provisions of the Convention of Paris are Articles 26 and 28. The contents of Article 26 have already been quoted. They give to Poland the unrestricted use of the port of Danzig for her imports and exports. The normal use of warships is not to effect imports and exports, and the Polish representatives have not suggested in their arguments before the Court that the unrestricted use of the port for imports and exports can cover a general right of access and anchorage for warships.

Article 28 provides that "at all times and in all circumstances Poland shall have the right to import and export via Danzig goods of any kind whatever not prohibited by Polish law". It is common ground between the interested Governments that this provision covers the import of munitions and other war material. But there is nothing in the terms of the Article to show that its framers had in view any mode of transport for effecting such imports and exports otherwise than by the type of vessel which is normally used for commercial transportation. The Article cannot be held to confer any general right of access or anchorage on vessels of war.

The result is that neither the Treaty of Versailles nor the Convention of Paris, either by the terms of the provisions they contain, or by necessary implication, confer on Poland the right she is now claiming.

The question upon which the Court is asked to advise asks also whether the relevant decisions of the Council of the

League of Nations and of the High Commissioner confer upon Poland rights and attributions as regards access and anchorage for her war vessels.

The words "relevant decisions" cannot be restricted to decisions taken either by the Council or the High Commissioner in pursuance of the powers conferred by Article 103, paragraph 2, of the Treaty of Versailles, and by Article 39 of the Convention of Paris. The Court has assumed that the phrase was intended to cover all decisions at which the Council might arrive which would be binding upon the Parties affected by that decision, and it is in this sense that the Court has interpreted the phrase in the question. No decisions by the High Commissioner are in fact relied upon to substantiate the Polish claim. It may therefore be assumed that there are no decisions by the High Commissioner which confer upon Polish warships the rights now claimed, and it is therefore only relevant decisions of the Council of the League which have to be considered.

The Council Resolution which is relied on is paragraph 7 of the Resolution of June 22nd, 1921, to which reference has been made above. This Resolution must be read in connection with that adopted by the Council on November 17th, 1920, on the same subject. This Resolution of 1921 once more accepted the view that the Polish Government was specially fitted to ensure, if circumstances required it and in the conditions which were there laid down, the defence of Danzig by land, and postponed any decision as to the conditions under which the defence of Danzig by sea should be secured. The last paragraph of the Resolution was worded as follows: "The High Commissioner should, however, be asked to examine the means of providing in the port of Danzig, without establishing there a naval base, for a 'port d'attache' for Polish warships."

It is maintained by Poland that, in the light of the Council's recognition that Poland was the State best qualified, if circumstances required it, to undertake the defence of Danzig, and in the light of the action which Viscount Ishii proposed in his report of the same date should be taken on the Polish demand for a "point d'attache" for the Polish maritime police vessels, the Resolution must be regarded as more than a mere

direction to the High Commissioner to study the question, and that it was intended by the Council to constitute a definite acceptance in principle of the Polish claim, leaving over for future regulation the details as to how practical effect was to be given to the rights involved.

It is difficult to see in the text of the Resolution any justification for this view. It is in terms no more than a direction to the High Commissioner to examine the question. It does not necessarily imply that the Polish claim had been accepted in principle, and the reports which were subsequently made by the High Commissioner and by the Naval Sub-Commission of the Permanent Advisory Commission show no trace of any realization on their part that the important question of principle in connection with a "port d'attache" at Danzig for Polish war vessels had already been settled by the Council. If the Council had intended its resolution to operate as the grant in principle of the right to a "port d'attache" at Danzig, it is strange that it should have taken no steps to correct the misapprehension into which the High Commissioner and the naval advisers of the League had fallen. It is equally difficult to understand how in such circumstances the Council could itself have said in January 1922 that "until the question [of the "port d'attache"] has been considered by the Council, the preliminary agreement [the Provisional Arrangement of October 8th, 1921] will remain in force", and again how it could have said in December 1925 that the question remains open.

The correct view of this paragraph 7 of the Resolution of June 22nd, 1921, is that it is no more than what its terms imply—a direction to the High Commissioner to examine how Poland could be given at Danzig a "port d'attache" for her war vessels without constituting a naval base. Until that question had been properly investigated, it would have been difficult for the Council to take any decision of principle. The

Resolution constituted the initiation of a study which was interrupted by the conclusion of the Provisional Arrangement of October 1921, an interruption which has resulted in the fact that no final and definitive decision has ever yet been taken.

The general conclusion which may safely be drawn from the terms of this Resolution and from the various relevant documents, such as the reports of Viscount Ishii, and from the reports by the High Commissioner and by the Permanent Advisory Commission and its Naval Sub-Commission, so far as these documents were the foundation of any action taken by the Council, is that the Council realized the practical importance of the question of providing shelter and harbour facilities for the vessels of the Polish fleet, the exact extent of such facilities and the conditions in which they shall be accorded, as well as the legal possibility of according them, being matters as to which further enquiries were necessary. Whether or not there may still be a need for some such facilities to be accorded to Poland is not a matter which falls within the jurisdiction of the Court. The task of the Court is limited to the interpretation and effect of such treaty stipulations as may be in force and such relevant decisions as may have already been taken.

FOR THESE REASONS,

The Court,

by eleven votes to three,

is of opinion that :

The Treaty of Peace of Versailles, Part III, Section XI, the Danzig-Polish Treaty concluded at Paris on November 9th, 1920, and the relevant decisions of the Council of the League of Nations and of the High Commissioner, do not confer upon Poland rights or attributions as regards the access to, or anchorage in, the port and waterways of Danzig of Polish war vessels.

Done in French and English, the English text being authoritative, at the Peace Palace, The Hague, this eleventh day of December, one thousand nine hundred and thirty-one, in two copies, one of which is to be placed in the archives of the Court, and the other to be forwarded to the Council of the League of Nations.

(Signed) M. ADATCI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

Count Rostworowski, Judge, declaring that he is unable to concur in the Opinion given by the Court and availing himself of the right conferred on him by Article 71 of the Rules of Court, has delivered the dissenting opinion which follows hereafter.

M. Fromageot, Judge, declares that, in his opinion, though it is true that the text of the Treaty of Peace of Versailles, Part III, Section XI, and the Convention between Danzig and Poland of November 9th, 1920, when referring to imports and exports, make no mention of Polish war vessels as being entitled to have the benefit of free use of the port of Danzig, nevertheless the recognition, made in the written negotiations preceding the Treaty of Peace, of a right on the part of Poland to "free and secure access to the sea", a right inherent in the creation of the State of Poland and of the Free City of Danzig, cannot be regarded as a mere historical fact without significance and renders it impossible equitably to exclude from such free access, for the purposes of their nautical requirements, Polish war vessels or any other Polish ships other than merchant ships.

M. Urrutia, Judge, availing himself of the right conferred on him by Article 71 of the Rules of Court, has attached to the Opinion this statement of his dissent.

(Initialed) M. A.

(Initialed) A. H.